

THE ARBITRATION AND CONCILIATION ACT, 1996 (Act No. 26 of 1996)

Enactment Authority: Ministry of Law and Justice / Parliament of India

Year of Enactment: 1996

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Section 7: Arbitration agreement

Section 7. Arbitration agreement.?

(1) In this Part, 'arbitration agreement' means an agreement by the parties to submit to arbitration all or certain disputes which have arisen or which may arise between them in respect of a defined legal relationship, whether contractual or not.

(2) An arbitration agreement may be in the form of an arbitration clause in a contract or in the form of a separate agreement.

(3) An arbitration agreement shall be in writing.

(4) An arbitration agreement is in writing if it is contained in?

(a) a document signed by the parties;

(b) an exchange of letters, telex, telegrams or other means of telecommunication including communication through electronic means which provide a record of the agreement; or

(c) an exchange of statements of claim and defence in which the existence of the agreement is alleged by one party and not denied by the other.

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Section 8: Power to refer parties to arbitration where there is an arbitration agreement

Section 8. Reference to arbitration by judicial authority.?

(1) A judicial authority, before which an action is brought in a matter which is the subject of an arbitration agreement shall, if a party to the arbitration agreement or any person claiming through or under him, so applies not later than the date of submitting his first statement on the substance of the dispute, refer the parties to arbitration unless it finds that prima facie no valid arbitration agreement exists.

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Section 9: Interim measures by Court

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(1) A party may, before or during arbitral proceedings or at any time after the making of the arbitral award but before it is enforced in accordance with section 36, apply to a Court for?

(a) the preservation, interim custody or sale of any goods which are the subject-matter of the arbitration agreement;

(b) securing the amount in dispute in the arbitration;

(c) the detention, preservation or inspection of any property or thing which is the subject of the dispute in arbitration;

(d) an interim injunction or the appointment of a receiver;

(e) such other interim measure of protection as may appear to the Court to be just and convenient.

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Section 11: Appointment of arbitrators

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- (1) A person of any nationality may be an arbitrator, unless otherwise agreed by the parties.
- (2) Subject to sub-section (6), the parties are free to agree on a procedure for appointing the arbitrator or arbitrators.
- (3) Failing any agreement referred to in sub-section (2), in an arbitration with three arbitrators, each party shall appoint one arbitrator, and the two appointed arbitrators shall appoint the third arbitrator who shall act as the presiding arbitrator.
- (4) If a party fails to appoint an arbitrator within thirty days from the receipt of a request, or if the two appointed arbitrators fail to agree on the third arbitrator within thirty days, the appointment shall be made, upon request of a party, by the arbitral institution designated by the Supreme Court or High Court.

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Section 29A: Time limit for arbitral award

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(1) The award in matters other than international commercial arbitration shall be made by the arbitral tribunal within a period of twelve months from the date of completion of pleadings under sub-section (4) of section 23.

(2) If the award is made within a period of six months from the date the arbitral tribunal enters upon the reference, the arbitral tribunal shall be entitled to receive such amount of additional fees as the parties may agree.

(3) The parties may, by consent, extend the period specified in sub-section (1) for making award for a further period not exceeding six months.

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Section 34: Application for setting aside arbitral award

Section 34. Application for setting aside arbitral award.?

(1) Recourse to a Court against an arbitral award may be made only by an application for setting aside such award in accordance with sub-section (2) and sub-section (3).

(2) An arbitral award may be set aside by the Court only if?

(a) the party making the application furnishes proof that?

(i) a party was under some incapacity, or

(ii) the arbitration agreement is not valid under the law, or

(iii) the party making the application was not given proper notice of the appointment of an arbitrator or of the arbitral proceedings, or

(iv) the arbitral award deals with a dispute not contemplated by or not falling within the terms of the submission to arbitration; or

(b) the Court finds that?

(i) the subject-matter of the dispute is not capable of settlement by arbitration under the law for the time being in force, or

(ii) the arbitral award is in conflict with the public policy of India.

(3) An application for setting aside must be made within three months from the date on which the party making that application had received the arbitral award.

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Section 36: Enforcement of arbitral award

Section 36. Enforcement of arbitral award.?

(1) Where the time for making an application to set aside the arbitral award under section 34 has expired, then, subject to the provisions of sub-section (2), such award shall be enforced in accordance with the provisions of the Code of Civil Procedure, 1908, in the same manner as if it were a decree of the court.

(2) Where an application to set aside the arbitral award has been filed in the Court under section 34, the filing of such an application shall not by itself render the award unenforceable, unless the Court grants an order of stay of the operation of the said arbitral award in accordance with the provisions of sub-section (3).